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# Loudoun County Board of Supervisors, Business Meeting, Tuesday, March 3, 2026

Date Tuesday, March 3, 2026  
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia  
Length 3h 18m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8130>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8130>

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[00:09:00] Amanda, turn me on for just a sec, please. So good evening, everyone. We are waiting. We have to have five people on the dais to make a quorum before we can do any county business. We can at least do any votes.

[00:09:17] We have four people on the dais. We have Ms. Bricksman joining us virtually. Mr. Sainz will be joining us virtually, but until we get one more person on the dais, we cannot even vote for the consent agenda, so we are waiting for that right now. Thank you.

[00:10:28] Can Ms. Bricksman hear me?

[00:10:45] Ms. Bricksman, Julie. What is that place in Ohio called? Westerbrook? Westerville. Westerville. That's where I'll be tomorrow. Westerville, Ohio. Sounds like a happening place, man. I would be literally there for, no kidding, like 20 hours.

[00:11:04] No kidding. I mean, if that long. Well, if you happen to pass by a place called Worthington, that's where I went to high school. Worthington? Is there like any signs up there that says Julie Brixman was here? I don't think so.

[00:11:21] I don't think so. You know what? I think passing your high school would be really cool, to be honest. Yeah, it might be fun. They're actually replacing it right now, section by section. Okay. Yeah, yeah.

It's the old Worthington High School. The old Worthington High School.

[00:11:38] Yeah, there's a new Worthington High School, but I went to the old Worthington High School. There's two now. Very cool. That's in Westerbroke? No, Westerville's a different area. Westerville's okay. Worthington's most. At Mountain Chair, can you hear me?

[00:11:53] We can hear you now, Mr. Sange. Yes, we can. Okay. Very good. We have to wait for one more person to get on the dais with us, sir. We can't start yet. I'm sorry about that, Madam Chair. It's okay. Okay.

[00:13:32] Well, good afternoon, supervisors.

[00:14:04] Good afternoon, staff, and good afternoon, Loudon. I'd like to call the March 3rd, 2026 Loudon County Board of Supervisors meeting to order, or business meeting to order. This room has a hearing loop. you need hearing assistance, please switch your hearing aid to the telecom mode. If you need a headset, we have those available as well. Please see the clerk to request one.

[00:14:25] Pursuant to Code Section 2.2-3708.3 and the Board Supervisor's Rules of Order, Supervisor Brickman and Supervisor Sains requested to participate in this meeting by electronic communication. A physical quorum of the Board Supervisors is present in the boardroom and and the board has made arrangements for the voices of Supervisors Bricksman and Sainz to be heard by all persons in the boardroom.

[00:14:50] Supervisors Bricksman and Sainz made these requests within the required time frame, and the county attorney determined that the request met the qualifications to participate remotely. The board will record in its minutes that Supervisors Bricksman and Sainz participated remotely from their homes in Loudoun County due to personal reasons.

[00:15:11] supervisor bricksman can you hear me i can madam chair thank you great supervisor sayings can you hear me yes yes i can hear you can hear me we can hear you just fine thank you guys supervisor letourna will now lead us in the pledge of allegiance if he has any words of inspiration or an invocation at this time thank you madam chair dear god as we gather this evening we thank you for all the wonderful things that we have here in louden county we thank you for our citizens and

[00:15:46] for all of our staff. We ask you to bless those who protect us every day, and in this moment we especially ask you to protect our military, those heroes who keep us safe every day, as well as our veterans who served previously. We ask this in the name of God. Amen.

[00:16:03] I pledge allegiance to the flag of the United States of America, public, and one nation. Supervisor Umstead will be a little late this evening, and Supervisor Kirchner will also be joining us, obviously, a little late this evening.

[00:16:34] I am going to -- Supervisor, are there any additions and deletions to the agenda? I do not have any. I read the consent agenda. It is as follows. Item R1, proclamation to recognize March 26 as American Red Cross Month in Loudoun County. That's for approval and presentation.

[00:16:51] Item R2, National Groundwater Awareness Week. That's for approval and presentation. We have a lot of speakers on that item tonight. Item 1A, agricultural and forestry district 2025 annual report. Item 1B, Agricultural District Advisory Committee bylaws amendment.

[00:17:09] Item 1C, Affordable Dwelling Unit Advisory Board bylaws amendment. Item 1D, Housing Advisory Board bylaws amendments. Item 1E, Housing Choice Voucher Resident Advisory Boards bylaws

amendments. Item 2A, Appointments and Confirmations.

[00:17:26] Item 3, Administrative Items Report of March 3, 2026 of the AIR. Item four, gated community design and construction standards. And item five, public hearing waiver and fee reduction, PCOR 2026.

[00:17:43] That's 0008, the Billas of Cascades proper agreement. I will make a motion to approve the consent agenda. Is there a second? Motion seconded by Vice Chair Turner. Discussion on the motion. Mr. Sainz, I'm sorry, I can't see you, so I don't know if you wanted to discuss anything.

[00:18:05] No. Okay. Okay, I can see Ms. Brixman, so, seeing, oh, Mr. Letourneau, okay, seeing none, I'll be able to say aye. Aye. Any opposed? That motion will pass, what is it, one, two, that's 7-0-2, that's 7-0-2.

[00:18:25] All right, I do not have a voice for a cause today because my staff is my voice for a cause. Everyone's been out sick for the past two weeks except my poor staff, so we will have I have a voice for a cause next time, although I do have quite a few comments from the past couple of weeks coming through chair's comments.

[00:18:42] So on Sunday the 22nd, we went to the Ledge Conference, to the National Association of Counties Legislation Conference, and I will say, Loudon is really, really, I think this is a baseball term, Mr. Hemstreet, swinging above our weight.

[00:18:57] Is that a baseball term? I'm making that up. Pitching above our weight or something like that. Some comment like that. We're doing really well. Punching. Punching above our weight. Well, that's not a baseball comment, that's a boxing comment. We're doing really, really very well in NACO. When I came to the board, there was no one going to NACO at all, no supervisors at all.

[00:19:18] And now six of nine of us attended the NACO conference, and I want to especially note two people. Supervisor Bricksman is now on the Women of NACO board. She's the southern region representative, and she actually, she and the women of NACO decided that this year they were going to do a project with high school girls and bring them to Capitol Hill with us to show them how both NACO works and how it looks to go on the Hill and lobby people.

[00:19:53] Ms. Brickspin brought young ladies, I'm sure she'll talk about this herself, from Loudoun County. And she did so much work getting a sponsorship from one of our data centers here to help get the packages together for all the young ladies. I was so proud of her, and so she did just a fabulous job.

[00:20:13] For her to go from, like, not even knowing what NACO was to being in that position in the time that she's been on this board and doing that much at the Women of NACO is pretty phenomenal. So congratulations, and Mr. and Vice Chair Turner is running for second vice chair of NACO, which is second vice president, rather, which is a humongous deal.

[00:20:34] You know, NACO has 300, well, there are 369 counties, 3,069 counties in the country, and when you become the president of NACO, you put forward an agenda that you want every county that's part of NACO, and 85% of the counties in the country are part of NACO.

[00:20:53] And so when I first got there, Roy Charles Brooks, who was from Texas, his item was childhood poverty. So every county in the nation, part of NACO, worked on childhood poverty. And so that's what the president does.

[00:21:09] They put forth their policy agenda for that year for every county to work toward together. And often it becomes an ongoing policy at NACO. Sometimes it's just for a year or two. But being the president

of NACO is a very, very big deal, and it's a very hard run to run for second vice president.

[00:21:28] So congratulations, Mr. Turner, as well. I am the vice chair of the health steering committee in NACO. Two of the things we put forward, we talked about this time, was, well, there was a motion put forward in the health steering committee that said, and I am paraphrasing now, that parents who choose not to vaccinate their children would not, quote, receive a consequence, unquote.

[00:21:56] When we dug down, when I dug down and asked questions as to what that means, not receive a consequence, what they were actually saying was, if you choose not to vaccinate your child, your child can still go to public school. I opposed that, and I spoke in opposition of that.

[00:22:13] And one year ago, I put a resolution forward that passed both the Health Steering Committee and the full NACO body unanimously that said that NACO is to put out correct information about vaccinations, scientific evidence-based information about vaccinations.

[00:22:35] And so the motion that if a parent chooses not to vaccinate their kid, their kid can still go to any public school in the country. I believe that should be left to the school systems and not to any other body.

[00:22:52] So I voted, I spoke against that, and actually that motion did fail. The other thing we talked about was a cross-claim from the Public Safety Committee to the Human Services Committee, cross-claimed a resolution from the Public Safety Committee on the issue of ghost guns.

[00:23:16] The resolution said that ghost guns, and I just learned what ghost guns were, that ghost guns needed to be registered. That did pass the full Human Services Committee, but when it got to the NACO Board of Directors, it was tabled.

[00:23:32] The reason it was tabled was because when it was written up, it was not written up to just say ghost guns. It was written up and just said guns. And so one of my colleagues in NACO decided that instead of trying to fix the wording at that moment, they would table it and we could bring it up again, the Health Steering Committee could bring it up again in July at the full NACO conference.

[00:24:02] The problem is that you have to give a justification for bringing up a resolution in July, because in July, resolution is considered an emergency resolution, so they have to give a justification. So if that cross-claim still happens and it goes to the July meeting, whoever puts that forward will have to give a justification of why the ghost gun issue and it being registered is an emergency.

[00:24:28] But as of right now, it's table. If it doesn't pass in July, it goes into -- we sit on that until next year. We did -- and I do want to thank Congress -- not congressman, but Chris Quintine, who's on the staff here for helping us set meetings and have meetings with our elected leaders up on Capitol Hill, we did meet with Congressman Superman and briefly met with Tim Cain, but mostly met with his staff.

[00:25:05] We talked about two things with them, well, for Congressman Superman, one thing, we talked about the per diem and the fact that Loudon would like to be back in the GS and have the per diem. He was very open to that. He knew the issue. It went very, very well, I thought, that conversation.

[00:25:22] It also went very well with Senator Cain's staff. With Senator Cain's staff, I also talked about the SAVE Act because NACO is opposing the SAVE Act because the SAVE Act will cause unfunded mandates to counties.

[00:25:38] And so they opposed it, and so I talked to Senator Cain about the SAVE Act as well. Finally, as always, I brought some things back for everyone to have. To Mr. Rogers, I thought this was really interesting, and I knew you really, really want this. It's the update on all the cases before the Supreme Court as it relates to counties.

[00:26:00] And so that is for Mr. Rogers. And for Mr. Freeman, I brought back the resolutions that were in front of the NACO's board and and some other information, and then for all of my colleagues, especially the ones who couldn't attend, I brought back just some information on NACO in general.

[00:26:24] And finally, I want to say that tomorrow I will be going for literally 20 hours on the ground and then back home to Ohio. I was selected by the Beaumont Foundation and the National Association of Counties to serve on the Commission of Local Public Health.

[00:26:46] We are discussing what public health offerings should be offered in public health departments all around the country. I am talking about how to help have a mental health offering in our public health departments, that looks like, how intensely do you, in a public health department setting, how intensely do you offer mental health treatment, does that include substance abuse treatment, since substance abuse falls under mental health treatment.

[00:27:22] And so we are discussing what public health should look like in our public health departments, and it is being led by two former governors. One governor is Governor John Kasich, former governor from Ohio, and Governor Andy Beshear, former governor from Kentucky.

[00:27:43] And there are 11 people from around the country who have been asked to be on this commission. I am one of the 11. I was really honored to represent Loudoun, and so I will be there tomorrow, and I will bring back what we say and talk about and all those things.

[00:28:02] is all that I have and Mr. Tim Street do you have anything this evening? Yes ma'am chair I've got four items for this evening. The first is that with the switch to daylight savings time this weekend Loudoun fire officials remind everyone that when you set your clocks ahead one hour that you also check the condition of your smoke alarm batteries. Smoke alarms give residents an early warning of danger and give first responders a better chance to mitigate fire damage. Loudoun County offers free smoke alarm installations and you can learn more at [loudon.gov slash smoke alarms](http://loudon.gov/slash/smoke%20alarms). Second, the application process is underway for Loudoun County's annual tourism grant program, which, as you know, is designed to support local

[00:28:42] tourism events and initiatives that bring tourists to Loudoun. Nonprofits, municipalities, and businesses in Loudoun are invited to apply for fiscal year 2027 funding. The deadline is April 1st. Anyone interested in applying is encouraged to attend a virtual training session scheduled for tomorrow March 4th. Details are available at [loudon.gov slash tourism grants](http://loudon.gov/slash/tourism%20grants). Third, the Commissioner of the Revenue has mailed renewal forms to participants in the county's tax relief program for older and disabled adults. The filing deadline for renewals is April 1st. First-time applicants may apply for the program online. More information is available at [loudon.gov slash tax](http://loudon.gov/slash/tax)

[00:29:19] relief. And then finally, the town of Leesburg has notified us that construction work is expected to begin on monday march 9th that will impact traffic flow along loudon street and will affect how drivers will enter and exit the county government center's parking garage access to the garage will be maintained at all times and there will be signs and flaggers to direct visitors the project is expected to last about eight

weeks those are my comments for this evening manager. Thank you, sir. Appreciate that. Okay. We have our information item tonight is the,

[00:29:58] we have one, which is the alleged report for the General Assembly. I think Mr. Freeman, Mr. John Freeman is probably remote. And Mr. Chris Quintine and other staff have come in person. So thank you all. I think we have one more week for this General Assembly session. Is that right we're getting there um so we're ready whenever you is jonathan on he is yes ma'am okay good afternoon madam chair there you are good afternoon ready when you are all right well good

[00:30:38] afternoon madam chair members of the board uh we officially have uh about a week and a half left of session as madam chair noted um just quickly talking about our uh our initiatives um the homeownership grants program bill, both bills are on third reading on the Senate floor and the other on the House floor. We don't expect to have any issues on those bills going forward. Talking about Oak Hill, if I may, I'm going to talk about that in a second after I get through the rest of the

[00:31:13] bills, if that's okay, Madam Chair, since that's more of a budget conversation. Sure. Okay. So the The data center bills, as we were talking about, the undergrounding and transmission line bills, as well as Senator Lucas's weatherization bill, are still waiting to be heard in House Labor and Commerce.

[00:31:36] Perry's bill is in subcommittee number three, and Srinivasan's bill is in full committee, and Senator Lucas's bill is in full committee. So I will update the board on those as soon as we have some results for those. Talking about the housing bills, Van Valkenburg's bill, the buy right for multifamily development in the business districts, that is on the House floor tomorrow.

[00:32:03] So we have talked to our entire delegation and sent them communications asking them to oppose that bill on the floor because we do not think that that bill is headed to conference. Its House cognate is on the Senate floor as well tomorrow.

[00:32:22] So both bills on the floor tomorrow. And again, we do not believe those bills are going to conference. Can you just talk a little bit more specifically about what that Van Balkenburg bill would do? Yes. So basically, it's basically in the name, by right zoning for multifamily and business districts.

[00:32:45] And so it is taking planning and zoning authority right out of localities hands is something that every single locality. I don't want to say every single locality, but a majority of localities around the Commonwealth, including VACO and VML, have fought very, very, very hard against this upcoming this session.

[00:33:10] And so it narrowly—the Senate version narrowly passed county, cities, and towns last week, last Friday, on an 11 to 10 vote. So that tells you how close the vote is, which is why we are discussing this right now and have had communications with our delegation.

[00:33:31] And again, that bill number is SB 454. The House version is HB 816. That is on the Senate floor. That got out of Senate local government 926. And so we are asking any and all of our friends to vote no on these bills.

[00:33:50] OK, Jonathan, just want to just back you up on that bill. So tell me the House bill again and tell me the sponsors one more time. The House bill is HB 816, and that is sponsored by Delegate Helmer and SB 454.

[00:34:06] And that is sponsored by Senator Van Valkenburg. And, you know, something that was brought up in house county cities and towns that we thought was a great point. It was brought up by one of the members of the committee was that it could potentially create by right housing near data centers and in other areas that are not suitable for large developments.

[00:34:30] And so these bills, each locality has their own issue with these bills. And so we are fighting very, very hard against these bills. Did it say how much buy-right housing would be allowed in the legislation?

[00:34:49] To what density? Currently in... Oh, sorry, go ahead. I was just going to say, so any zoning ordinance shall permit multifamily and mixed-use residential development as a buy-right in not less than 50% of the aggregate land area of all zoning district classifications with some specifications.

[00:35:13] In not less than 50%? Mm-hmm. And does it say that by right housing has to be attainable or affordable? Madam Chair, that was actually a question asked in committee about attainable and about affordable, and it was said multiple times that that is not specified in the bill.

[00:35:39] That's what we heard in committee. Okay. All right. Continue, please. The other housing bills that we have fought very hard against is HB 1279. That is the faith in housing bill sponsored by Delegate Cole that is on the Senate floor for a vote tomorrow.

[00:36:02] That also got out of Senate local government on a nine to six vote. This is another bill that many localities around the Commonwealth have fought very, very, very hard against. So we have asked our delegation to vote no on the bill if it does not have a reenactment clause.

[00:36:19] We do expect that bill to go to conference. The Senate version is SB 388, sponsored by Senator McPike. And so, the House has already insisted on a committee of conference. And so, those are a couple of bills that could come out of conference with no reenact clause.

[00:36:43] And so, those are some bills that we are watching very, very closely. Okay. I'll have some more questions about those later. Okay. Go on, please. So moving to the budget, the House and Senate completed their budgets Sunday, February 22nd, and then made them public February 24th. And so the budget bills are now in the opposite chambers, meaning that the conferees will soon begin negotiating on the budget. And so some things in the budget that we would like to highlight is that in the Senate budget, as it pertains to the

[00:37:21] sales and use tax exemption, they did place an end date for that exemption to take place on January 1st, 2027. In the House, they put energy efficiency standards on the sales and use tax exemption and kept the expiration date at 2035. And so that is going to be a huge topic of debate as the conferees look at the budget. Another thing that we saw in the budget

[00:37:55] was the computation of the local composite index, so the LCI formula, which pretty much determines in large part our K-12 funding. The Senate placed in their budget language on the LCI that would take in account the data center money that localities get. And so the estimated impact before Loudoun County, as staff analyzed that, would be around \$31.5 million. And the House budget, they kept the LCI as is, so there wouldn't be any impact for us. And the important

[00:38:33] thing to note on the Senate language as it pertains to the LCI, they put it with a beginning date of 2028 to 2030 biennium, so a biennium that is not being considered in this legislative session. So that is

something important to note. But if it made it into the budget, that would be something that could possibly make it into a future budget. So that is something that we are also talking with conferees about. As it pertains to something that goes right in with data center

[00:39:08] money, if you will, is that getting rid of the exemption, as we look at the 0.7% that the regional transit authorities assess on that sales and USAC exemption on top of the 4.3%, the Senate also put language in the budget that would have essentially had that data center money that comes under that 0.7% bypass NVTa and go completely to the WMATA Capital Fund.

[00:39:38] And as we've talked about Metro funding this session, we have repeatedly talked about the operating dollars that are needed. And so, the House budget did put money in their budget pertaining to operating costs for Metro. And so, as we continue to talk about the budget, we're talking about \$76.5 million each year of the biennium for WMATA, for Metro, and also advocating for money for the other transit systems around the Commonwealth as well,

[00:40:13] as we all partner together on this larger conversation that is transit funding. There was also a 1 percent increase on the T.O.T., which would have diverted some money as well beginning January 1st to the WMATA Capital Fund in the Senate budget.

[00:40:33] And so those are some of the things that we're fighting against, if you will, when we talk about when we talk about the sales of you stack exemption and how some of the money flows. And Madam Chair, just in the same vein of data centers, I'll stop there and then I'll talk a little bit about Oak Hill and the budget.

[00:40:53] You've just gone over a lot of stuff, including data centers and housing and a lot of things. We're going to get to Oak Hill in just a second, but I'm going to stop you right now and ask for questions from my colleagues from anything else you've actually discussed so far, and then we'll go back to Oak Hill, okay?

[00:41:10] Yes, ma'am. I know that Ms. Bricksman and Mr. Sains, I'm going to be picking on you all to go first a lot because I can't see you, and I apologize, but Ms. Bricksman, do you have questions? I do. I just want to make sure I heard correctly. Are you saying that they are once again trying to siphon off NVTa money to send to the metro capital budget?

[00:41:38] Well, so in the Senate, it is very similar to what I believe you're referring to the 2018 issue. It's very similar, but this time what they're doing is they're essentially taking data center money and bypassing NVTa with that 0.7% only as it pertains to data centers and the sales and use tax.

[00:42:06] So we say that sales and use tax, we're talking about that 0.7%. They're bypassing NVTa and completely sending the money to the WMATA Capital Fund. Do we know what that's estimated to be? I do not have that number on hand.

[00:42:22] Okay. All right. Thank you. That's all I have. Thank you. Mr. Sains? No, ma'am. Not at this time. Okay. Ms. Glass?

[00:42:38] Thank you, Madam Chair. And thank you, Mr. Freeman, for the update. I understand that the SPARC budget amendment the board voted on in the last meeting was included in the Senate budget, but not included in the House's budget. What is next for the amendment and the budget as a whole?

[00:42:59] So, what's next is that the conferees in the House and the conferees in the Senate, which have not officially been announced as of yet, will meet over the next week and a half or so once they're

announced, and they will hash that out for a conference report.

[00:43:18] The conference report is just a fancy name for the budget agreement between the House and the Senate. Okay. Thank you. Mr. Crony. Thank you, Chair Randall, and thanks, Mr. Freeman. I didn't really understand. You said the estimated impact could be \$31 million with the Senate of LCI. What is that? What exactly is that?

[00:43:43] So basically, you know, first, let me back up. When we talk about LCI, LCI determines a school division's ability to pay education costs fundamental to the Commonwealth standards of quality with local funds.

[00:44:00] And so basically the LCI has been the same for a very long time, and it's calculated using three indicators of a locality's ability to pay when we discuss education costs. That is adjusted gross income that's weighted at 40 percent within the calculation, real property, the value of real property, which is weighted at about 50 percent within the calculation and taxable retail sales, which is weighted at about 10 percent within that formula.

[00:44:32] And so basically what the Senate budget language included was factoring in the value of computer equipment to that formula. which would essentially reduce our K-12 funding by \$31.5 million annually.

[00:44:53] And that's beginning in 2028. And that is if the value of our equipment, our computer equipment, does not go up. If it goes up before 2028, that impact could be higher. That's just the estimated impact, and that dollar amount could fluctuate.

[00:45:13] And that's part of the budget discussion in the Senate? Is that it? That's part of the budget conversation between the Senate and House conferees. And so what we're fighting against is ensuring that that language that pertains to the LCI does not make it into the conference report.

[00:45:32] Okay, thank you for that. And then which of the data center sales and use tax proposals seem more viable than others? Which are you really fighting? Because it sounds like there's a whole bunch of proposals, correct? Absolutely. So I would say what we're fighting for as it pertains to the sales and use tax exemption is the energy efficiency standards that the House budget placed on the sales and use tax exemption.

[00:46:01] So basically saying to receive the exemption, you must meet these energy efficiency standards to receive it with the expiration date remaining at 2035. as of right now that expiration date uh there are some that would like that expiration date to or sunset clause is what some call it uh to be extended from 2035 to 2050 uh right now we're just uh focusing on ensuring that uh the sales and use tax exemption remains in place with the energy efficiency standards that the house placed on it so that's what i would say we're fighting for

[00:46:40] as we talk about the exemption. And again, to go back, because it all kind of folds into each other as we talk about data centers and the revenue that comes from data centers holistically, we're also fighting again to ensure that the LCI formula stays the same. So basically, we're fighting for the budget language in the House, because the House did not change it.

[00:47:04] And then as we talk about Metro funding, we believe that it's just totally unworkable to place, to take into account the sales at USAC exemption, as we talk about that 0.7 percent bypass NVTa and send it

to the WMATA Capital Fund. Because again, this entire time, we've been talking about operating dollars. And so, what we're fighting for is essentially the house language that gave Metro funding, the Metro, the funding dollars that they needed, as we

[00:47:38] discuss the operating dollar conversation and so just to highlight that again we're fighting for 76 and a half million each year of the biennium for WMATA. Okay. And then we're also we're also partnered with the other transit systems around the Commonwealth to fight for money that they've advocated for and so we're all fighting together and partnered together as stakeholders with mutual interests. Thank you. Ms. Umstead. Thank you, Madam Chair. Mr. Freeman, it's good to see you,

[00:48:14] as always. On the legislation to only allow an exemption for the sales and use tax for data centers and the requirement that data centers must meet certain energy efficiency standards, Do we have any information from the industry as to how easy or difficult it may be for them to meet those standards?

[00:48:47] I think that that, you know, is a part of the ongoing conversation to ensure that the energy efficiency standards that get into the conference report is something that, you know, that the industry can meet and is also good for the stakeholders concerned about things like the environment and environmental impacts and things of that nature.

[00:49:17] So, it's all a part of one conglomerate of conversation. But I think, again, where everyone lands is that keeping some sort of exemption and with some sort of standards is basically what folks are advocating for. Just one follow-up. Do you have a sense, and this would probably be from discussions with regulators or the industry, whether older data centers will have more difficulty meeting those standards and newer ones will not? Or are we looking at the

[00:49:56] different generations of generators. Where do you think most of the industry's ability to meet those standards would come from? Retrofitting, or can they meet it now? I think that's a great question for staff, and I think that we could go back and get with staff and answer that question for you at a later time. I'm unsure as of right now. But again, you know, what I would say is that it's a part of the ongoing conversation. And I think keeping some sort of exemption in place

[00:50:35] is probably the focus right now for folks. And then, of course, the second part of that, as we talk about the energy efficiency standards, is what that technology looks like. Okay. Thank you so much. Vice Chair Turner.

[00:50:52] Thank you, Madam Chair. I just want to do a quick inventory, Mr. Freeman. So there's basically two sales tax exemption bills still alive. One sunsets the sales tax exemption in 35 and ties a bunch of environmental standards to it, and the other one does away with the sales tax exemption completely by the end of 27.

[00:51:12] Did I hear that correctly? Budget language, yes. So this is a budget conversation is what we're talking about right now. as we, as the conferees hash out the conference report.

[00:51:27] Okay, and I'd just like to do a quick inventory on the Loudon delegation's positions on these. So, I believe Senator Perry had a bill to eliminate the sales tax exemption. What's the status of that, if, in fact, that's what she had?

[00:51:46] I would have to double-check that. Okay, I may be wrong. Yeah, I may be wrong, but it seems to me I saw a news article that she had a bill to eliminate the sales tax exemption. So if I'm wrong, I

apologize. Delegate Reed had a bill, I believe, to use a portion of data center tax revenue to fund renewable residential projects. Is that still alive?

[00:52:13] That is not. That's HB 1132, if I remember correctly, and that bill did not make it through committee. Okay. And there's two housing bills that are still alive. One is faith in housing, and the other one is allowing to build buy-right on commercial properties. Is the Loudon delegation involved with any of those, and those are still alive, it sounds like?

[00:52:37] That's correct. Those bills are still alive. And just to go back over them, the buy-write bills are SB 454 and HB 816. And then the faith and housing bills that we're concerned about are HB 1279 and SB 388.

[00:52:56] Okay. And so just to reiterate it, SB 454 is on the House floor tomorrow. HB 816 is on the Senate floor tomorrow. HB 1279 is on the Senate floor tomorrow. But we believe that that bill is going to conference. That's the faith and housing bill. And that SB 388, the House has already insisted on a committee of conference. So that SB 388 is already in conference. Just to clarify, My apologies, Senator Perry, if in fact that's not a bill that she sponsored.

[00:53:29] I thought I read something that she did, in fact, sponsor that. So if she did not, I apologize. One final point. This is a tough one, and you may not want to answer it, and I certainly don't if you're uncomfortable. If these manage to make it through conference, has the governor indicated any preference or any leaning one way or the other on these sales tax exemption bills or these housing bills?

[00:53:53] I do not have information on that as of right now. I think at this point, folks are watching to see how these bills will shake out in the respective chambers and in conference. Okay, thank you. If I could clarify.

[00:54:09] So, Senator Perry does not have a bill eliminating the exemption. She did speak in support of it in the press, so that might have been, but she didn't have a bill herself. And also, you said when you were talking about the elimination of the exemption on the Senate side, it ends at the end of this year it expires on January 1st 2027 not through 2027 thank you thank you very much Jonathan you talked it's we've talked at some length and and supposedly the reason for for the general assembly feeling as if they need to take control of local zoning and

[00:54:43] local land use is to make sure that there are more affordable attainable homes in allowed but none of these bills that are being put forward require the homes that would be built to be affordable homes or attainable homes, correct? That is our understanding, Madam Chair.

[00:55:02] So then how are they kind of jiving the fact that they believe that this is what we need for more attainable homes, but they're not required to be that? The other question is, so for the Faith in Housing bill especially, when we have areas of the Commonwealth and of our county that are low on water, they don't have water, I mean, we don't have water.

[00:55:23] We can't just keep sinking new wells with new homes. What are they saying or is there any recognition at all that if they mandate or allow homes to be built without going through the local government process and those homes and those places do not have adequate water for new wells or an aquifer or what are they saying?

[00:55:50] Is that being addressed at all? So just to go back to the first point as it pertains to the GA's thought when it comes to housing in general and the need to push some of these bills through in order to fix the housing crisis is that folks believe that the issue as it pertains to housing affordability, as we talk about housing costs, is related to housing supply.

[00:56:22] As we talk about the rise in rent, the issue is housing supply. And so what the thought process has been, at least what we've heard in committee and on the floor, is that the thought process is that if you make it easier to build housing and you increase housing supply, you will therefore lower the cost of housing in general.

[00:56:48] I understand that. I understand how supply and demand work. I get that. But the item they've been talking about for such a long time is affordable housing. They haven't said it in the way you just said. I understand that. But they have been saying affordable housing or attainable housing, yet not requiring any of these housings to be at a certain AMI.

[00:57:13] This could be at 120 percent AMI. They're not saying that this needs to be a 50 or 60, just any home, any that's that. OK, I understand what you're saying, but talk to me about the water issue, please.

[00:57:29] Well, when if I may, that is the very point of what, you know, Virginia Association of Counties said. That's the very point of what, you know, virtually every locality as we stood in the line of opposition to some of these bills, you know, those are the very points that were raised.

[00:57:49] And so, you know, we've been fighting very hard against, very hard against these bills. I'm sorry, give me a second, Supervisor. What was the very point? You mean like the fact that some places do not have adequate water is a point that's been made? Well, no, just the fact that, you know, as we talk about, you know, planning and zoning, as we talk about how folks plan their communities, as we talk about the housing affordability issue, there are just many ways to get there in consultation with localities, and so those are some of the things that we have advocated for.

[00:58:30] I'm sorry, Jonathan, I'm sorry, I haven't, I haven't, with respect, I'm literally trying to ask, has anyone addressed the fact that there is not water in places that they will allow homes to be built. Has anyone addressed that? I apologize. I apologize, Madam Chair. I would say that as we look at all of the impacts, these are a lot of the points that Vaco and all the other localities in the Commonwealth are bringing up as we discuss these bills.

[00:59:00] Okay. Thank you. Thank you. Thank you. I'm sorry. I'm frustrated. Of course, it's not with you. I'm just frustrated overall. You want to talk about Oak Hill? Yes, Madam Chair. So, Delegate McAuliffe presented HB 500 this morning. The bill was continued, which is a soft way of defeating a bill in the spirit of the fact that this is a budget conversation. And so, in the Senate budget, there was language which essentially deferred

[00:59:34] the acquisition of any property for the purposes of creating a state park, deferred the acquisition. In the House, there was language that basically approved the acquisition, but lowered the amount of money that would go to the property from the state acquisition and development fund, which we were set to get \$10 million for the property from that fund, which is

[01:00:12] used in acquisitions for the purposes of creating state parks, just for clarification. And the House budget, they lowered that amount from \$10 million to \$5 million with a requirement for Loudoun County to put up an additional \$5 million on top of the \$22 million.

[01:00:31] that was appropriated for the acquisition of the property. So then you're saying that Loudon would pay \$27 million and the state would pay \$5 million and it would still be a state park? That's correct. Okay. And just to clarify, as we talk about the conference report, that could change.

[01:00:52] Okay. All right. So where is it at right now on the House side? The House placed the acquisition in their budget. The Senate did not. And so that's part of the conversation on the conference report is what the details of that acquisition will be.

[01:01:12] Okay, thank you. Questions about Oak Hill, Mr. Sains? Or anything else that Mr. Freeman is talking about?

[01:01:30] No, I'll just say we'll continue to have conversations about Oak Hill and see where it goes. So hopefully things will right themselves and we don't have to do this extra \$5 million, but we'll see where that goes. I think it's a converse.

[01:01:48] Ms. Brooksman? Thank you for Mr. Freeman and staff for all the work they're doing down there. Okay. Thanks, Madam Chair. I just am curious if you know Mr. Freeman, how much is actually in that acquisition fund that we were proposing the state used \$10 million of that fund total?

[01:02:15] Do you know how big that fund is right now? I do not know how much is in that fund in total, but I can find out. Okay, because, I mean, I don't understand, first of all, like why we would have to put another five million but i might understand a little bit more the the thinking if that fund is kind of rather small i would not understand it if that fund is you know a couple hundred million dollars um i think that's if it's a huge fund that would be um that would just be kind of

[01:02:55] offensive that they're they're um trying to renegotiate another five million so uh thanks for all your work on it we appreciate it thank you anybody else on oak hill mr crony uh thank you chair randall and thank you mr freeman for all your advocacy on oak hill um so the senate didn't include it at all in their their budget correct even even with the house saying you know we're going to try and get an additional five million that's correct um so next it goes to

[01:03:30] conference is that correct that's correct okay and then um can the governor add it to the to the budget i mean i don't know if if it doesn't come out of conference where they agree what what's next uh so uh if it doesn't come out of conference uh the governor could add uh a a an amendment to the budget to add it back in okay okay so that might be where we go and um i mean you've been communicating that there's an endowment that's funded um you know that this is really not doesn't

[01:04:09] require any maintenance so you've been um communicating that i mean it just seems interesting that they would ask for another five million when we've already put 22 into it from london county so okay thank you mr freeman mr turner thank you madam vice chair well after two years it's pretty clear to me that the Virginia State Legislature is really not interested in having President James Monroe, a founding father, and have his original house be declared a state park.

[01:04:44] My question is, if the county takes this project over and make it a county park, are there any strings that the state has attached to the project that they could prevent us from doing that? I would have to double-check.

[01:05:03] I would just say that the—yes, I would double-check. Okay. Thank you. if I may. The answer is no. Okay, great. So if they're out, they're out. Okay, thank you. So I just want to say this one more time.

What Virginia's Senate side is saying to us is not in their budget at all. What the House side is saying to us is yes, but with \$5 million more from Loudoun County, which raises ours to \$27 million, lowers theirs to \$5 million, yet still

[01:05:36] they want to call it a state park. Did I get that right? That is correct. Because in my head, we can just go another five and just have it be a county park. I'm just, you know, so I, you know, Mr. Turner asked a great question before about what the governor will do or won't do, and I know we have no idea yet.

[01:06:05] We haven't had that discussion, but we do want to watch this very closely because I do believe that this board, before it got to the governor's desk, may want to come back and have a discussion about whether we want to have a state park that we're putting \$27 million in if the state's putting \$5 million in.

[01:06:23] So before it got that far, we may want to have another discussion about what that would look like. And so I know that we're getting close. And, of course, how long does the governor have to sign bills after the session's over, Mr. Freeman?

[01:06:41] So after the let's just take the budget, for instance, after March 14th, theoretically, that's when the General Assembly will vote on a conference report is March 14th, last day of session. The governor has a 30 day action deadline to veto line item veto or amend bills or sign them into law after that 30 day action deadline.

[01:07:08] then the actions of the governor go back to the General Assembly for reconvene, which is April 22nd this year. And then the General Assembly votes on the governor's actions. And then they send they send what they voted on back to the governor for a governor's final action deadline to sign or veto bills.

[01:07:32] But if we want to take this matter up again and decide whether or not we want to do something different before the governor signs it, we need to do that before she signs it, right? I mean, that wouldn't even be—once she signs it to reconvene and all that, it's off the table. We need to do something before she signs or doesn't sign it.

[01:07:49] It's correct? That is correct. I would say that, you know, the conference report has a long way to go, even though it's 11 days or so from now. We have a long way to go. One more question real quick because I'm running down time. Was there any reason given for saying Loudoun needs to put in another \$5 million? Was there, I mean, was there any place where we were falling short? Because we've talked about this before, except for the fact that the state doesn't want to do but \$5 million. Was there any other

[01:08:24] reason given why they wanted Loudon to do another 5 million? I would say that that is part of the ongoing conversation. Okay, okay. Okay, Mr. Freeman, this has been a tough session for not just Loudon, but for localities in general. You have been down there, I think you've come home one time or something since the session started, and you have worked really, really hard on our behalf, and we recognize it. Even though we're not having a great session, we recognize and appreciate how hard you

[01:09:00] work down there for us. So we appreciate you. Thank you very much. Thank you, Madam Chair. All right. Supervisors, there is a motion on the table, although this is an information item. At any time, an information item can become an action item if a supervisor chooses to bring an action on that item, which should have actually been said during additions and deletions, but wasn't. So that's okay. I'll let that go. But Ms. Bricksman does have a motion on the table.

[01:09:31] She did send five motions today to us in an e-mail. She sent it in a timely manner. It came in before 12 noon. She and I talked and tried to figure out what goal is she trying to achieve and did it have to be achieved through five motions or through a policy statement.

[01:09:55] She agreed that it could be achieved through a policy statement and not five separate motions. So that is the policy statement you see on the piece of pink paper in front of you right now. Ms. Bricksman, I did appreciate our talk today, and I do appreciate the fact that we're not doing five motions.

[01:10:10] We're doing one statement instead. And so having said that, I will go to you for the motion, and we can talk inside of the motion. Thank you, Madam Chair. I appreciate you and everyone that's worked on this. I move that the Loudoun County Board of Supervisors include a policy statement in the 2026 legislative program that reads, The Board of Supervisors supports legislation that encourages transparency in civil immigration enforcement activities, limits state and local law enforcement cooperation in immigration matters, and limits their ability to enter into immigration enforcement agreements.

[01:10:44] The motion's made, and Ms. Glass beat me to a second, so that's good and fine. Would you like to have a discussion on the motion, Ms. Bricksman? I would. Thank you, Madam Chair. appreciate everyone's patience with this. I think that, you know, there are a lot of bills down there trying to figure out what to do about what's been happening across our country and potentially happening in Virginia. We've seen unidentified masked agents harass and violently detain and arrest residents and sometimes U.S. citizens. We have watched arrests on public property parks

[01:11:23] And in public buildings, when people show up just to attend their legal proceedings, following the law, to try to gain legal status in this country, we have seen law enforcement agencies, including our own sheriff's department, using local resources to assist in this heinous, racist, and often unconstitutional activity, which to me is unacceptable.

[01:11:49] And I think it's probably unacceptable to most of our constituents. So I'm asking for a policy statement in our legislative agenda that supports constraining the Department of Homeland Security and ICE activity and any local partnerships that would use local resources to continue this activity.

[01:12:09] Thank you, Madam Chair. So I need to do a point of clarification or maybe even a friendly amendment. So Governor Spanberger has already put something forward, and Jonathan might be gone, but Chris, if you know, or Mr. Rogers, if you know, help me.

[01:12:31] Is what Governor Spanberger put forward, does it just apply to state bodies or state policing? Is that how we should read her executive order that she's put forward already? I will defer to the county attorney if he knows.

[01:12:49] i'm not i'm just a point of clarification i'm sorry i just don't know the answer to that question yes madam chair it's only for state agencies well i'm asking because because your thing said state and local and she and and we're we're a local body oh and so she's taking care of state so you might want to change that to a friendly amendment would just say limits i would say local because see that we're not it's we're not a state body yes well but we might support legislation that

[01:13:25] further limits state cooperation that might not have been covered in her executive order um okay i i want to offer it up if you don't want if you want to take it that's fine it's fine all right do you um you finish your opening uh other speakers on them on the motion mr sayings i'm sorry i can't see you so i'm

going to go to you to see if you want to speak on the motion uh nothing to speak on the motion about okay all right miss umstead oh thank you thank you madam

[01:13:58] chair um i appreciate where supervisor briskman is coming from um i certainly appreciate the transparency clause although i'm not sure what that would look like um on the ground But my concern is that while the current version of ICE has been awful, ICE wasn't always that way.

[01:14:35] And I hope we will see a day when it returns to a more responsible, less aggressive set of operations. But we do have, although we have many, many, many undocumented immigrants who are wonderful members of our community, we do have some who are truly dangerous and violent.

[01:15:02] And I'm not going to support this because I don't want our law enforcement, our local law enforcement, to feel they cannot cooperate with ICE when they have a violent offender who is also undocumented.

[01:15:21] So for those reasons, I cannot support this. Thank you. Mr. Kirsner? Thank you, Madam Chair. Yeah, I agree with a lot of what our esteemed colleague from Leesburg has said.

[01:15:37] This is very broad, first of all. I think it's one thing to say, hey, we don't necessarily agree with how things are being handled. We'd like to, you know, whether at a state level or local level, give guidance and recommendations to our local law enforcement. I think it's really dangerous for us to start stepping in the shoes of law enforcement saying, This is how you should handle things with the national government in dealing with illegals that may be here, especially those that may be here with violent tendencies, MS-13 members, et cetera.

[01:16:07] And really, it is a kind of a policy statement that kind of what we've been talking the opposite of us and putting kibosh on kind of local control of law enforcement, those who know best. I mean, as a former prosecutor who had prosecuted many years, I've also done a lot of defense work in my current position at my law firm.

[01:16:29] What I have seen and generally experienced is that you create incentives when you create these sort of carve-outs. And what you do is you create an incentive to kind of be a sanctuary area where, okay, there's limits on what law enforcement is or is not going to do. And unfortunately, that will often invite some of the worst criminal elements of the illegal population that may not exist simply because, hey, we're being treated very differently.

[01:16:57] I mean, I look at, for example, Fairfax County, Loudoun County, and then other counties, and there is a significant element that gravitates to those areas simply because the leniency that's shown or the lack of cooperation with ICE. So I think this is a very dangerous direction to go in.

[01:17:17] My personal experience, as well as I think statistics, bear that out. And I think lack of cooperation with ICE in many circumstances can ultimately be a public safety issue, which would ultimately tie their hands in situations which would make us a less safe community.

[01:17:35] Now, do I think that different things could not be done at a national level or within the current process? I'm sure there are. And I think that's somewhat what is being reacted to by a lot of folks across the country. But the truth of the matter is to make broad sweeping statements like this that are based on some, you know, obviously we've seen some of these anecdotal situations that have occurred is a very dangerous precedent. And it's kind of a knee-jerk reaction, which I think it's one thing to say, hey, we need some

reform. We need a different way to handle this, but to limit localities and sheriff's departments and local police departments on how they handle

[01:18:13] interaction with ICE, especially concerning a lot of the bad actors that we are well aware of that came in under the previous administration for many, many years, I think is a very, very dangerous precedent to send. This board should not be delving into that. Thank you.

[01:18:31] Thank you. Mr. Letourneau. Thank you, Madam Chair. Well, I'm a little bit of a broken record when it comes to legislative program but i will continue my viewpoint that it has proliferated far too much it is much larger than it ever was historically and i do think it contributes sometimes to a little bit of a mixed message or at least distorted one that comes from the county in richmond which does not help our advocacy efforts the items at which the board should directly engaged in are those that are unique to loudon in which we have a unique voice that is not

[01:19:08] i think at times covered by others and i think there should also be a weight given to our effectiveness and to timing um putting aside everything the the debate that can be had about this particular topic which if the public had known we were having would probably fill this room with people on both sides simply that we are already past crossover well past crossover the bills that are out there on this are out there whether the loudon county board of supervisors weighs in on them or not it's not going to have any material effects on what happens with them

[01:19:44] the sponsors of the bills are not sitting by the phone waiting to hear what our vote is on this and it bothers me that we keep doing this because we do it on all sorts of topics now and so i have my viewpoint on this topic others do they're legitimate viewpoints and and come from a good place i'm sure but this to me fits in that category again there could be specific things to address related to local issues but we're a local body and we have local folks here that we could address them with rather than weighing in on state legislation that is going to make its way through

[01:20:21] the process and mostly has already so for that reason i'm not supporting in addition to our legislative program with a very broad policy statement especially at this juncture in the legislative session thank you mr crony uh thank you chair randall so i think we have a week and a half left of session i think um uh mr freeman said we have 11 days um i didn't have the luxury of reading um i think um uh supervisor briskman you had sent like five bills right that you wanted us to support um or look at or follow am i correct about that can i can i share randall can i ask

[01:21:00] supervisor briskman that you have five that she sent up it was five yes it was five um i did this is an attempt to um kind of gather them together so that staff doesn't have to go chasing each bill yeah yeah um yeah i just don't know i i i the timing is what bothers me is that this is coming kind of at the end of the session and i haven't looked at um those those bills i just didn't have the time because we have so many other things that we're following um this session um let me let me

[01:21:37] think about it but i think it's kind of late in the session and um while i appreciate what you're getting at and I do know where it's coming from. I just I don't I don't know if the timing is right at the very end you know when we're kind of wrapping up. Thank you. Ms. Gless. Thank you Madam Chair. The timing is always right to do what's right. I think the the term that I heard

[01:22:15] from one of my colleagues of saying illegals is a little derogatory to folks who come to our country and may have the green, have the papers in order to be here and then are broadly taken

[01:22:44] away from their families. I know of students whose family members are not there because of this.

[01:23:01] They're asking us for help. This is a way to help those families by asking the General Assembly to look at these things. Thank you, Madam Chair. Thank you. Vice Chair Turner. Thank you, Madam Chair.

[01:23:21] I was fairly certain my colleague was going to suggest that this is not a Loudon issue and we should stay away from non-Loudon issues. And so I was kind of prepared with my response. A constituent within my district contacted a member of this board not too long ago when his establishment was raided by ICE and two of his workers were hauled out and taken away without judicial warrants and without due process. That's here in Loudon County. ICE operations in this country right now are engaged in widespread illegal activities. There was a story on the

[01:23:56] news this morning that many ICE agents are stealing cash and jewelry from the people that they detain, and they're investigating that now. When this constituent who owns an establishment was confronted, who he was an ardent supporter of the president, and said, you voted for this president who said he was going to do this, his answer was, yes, but I didn't think it would happen to me, and he was outraged that it had happened to him. This is going on in Loudoun County. Now this motion will have no effect. We're late in the session. It's not going to change anybody's mind. It's not going to pass any bills, but it's a statement by this elected body in this

[01:24:35] county in which ICE operations are going on right now, in my judgment, illegally, to say state and local government has a voice and a right to manage these operations and protect the rights of the residents of this county, and I think that's an important statement for this board to make, and so fully support this motion. Thank you. So to the concern that the current version of ICE is quote not right but they won't always be this way we can make this this statement specific for the next year. We can we can narrow that down if that if that's somebody's concern. I mean Mr. Turner said

[01:25:10] much what I was going to say to be honest and to be real clear no one on this board thinks that anybody is sitting by the phone in the General Assembly waiting for this to come through. no one thinks that. And I'm serious. I know that was said kind of flippantly, but I'm going to respond to that. I do know this, that right now, somewhere between 5 and 14 percent of people who are picked up have a violent criminal record, 5 to 14 percent. The vast majority of people who are picked up, 70 percent, have no record at all, nothing, have no record at all. Many of them are people who were DACA, who were brought here when they were young and are not documented,

[01:25:49] and now they're 17, 18 years old and they're not documented. No one, I don't believe, anyone on this board does not believe that America should control its borders and that America absolutely should have people who are doing illegal things because coming to this country, yes, it is a, I believe it's a misdemeanor, but people who are doing serious crimes and violent crimes should be deported.

[01:26:17] No one's saying that. I think what Ms. Bricksman is trying to get through in this moment is a message, a message to Loudoun County and the people who live here, which is we see you, and we know that some of you are out there, and we know that you're scared to go to the grocery store, and that you're scared to go to church, and that you're scared to send your kids to school, and that many of you are here because you came here seeking a better life.

[01:26:46] I will not make judgments on whether or not somebody should have got their legal papers. I do know the process to get a legal paper is a very long, arduous process, but I do know that most of the people, the vast majority of the people who are being taken out of here are not people who are here and doing things that are illegal.

[01:27:07] They are just trying to live their lives. So I think what we're doing here, and maybe it's not the right vehicle by which to do it. I will say that. But I think what's trying to be said from I think what would be the majority of this board is a message that you might be here in an undocumented status, but you do not deserve to be terrorized.

[01:27:34] You do not deserve to be harassed. You deserve to be able to go to the grocery store and not be scared. I think that's the message trying to get past at this moment. I do need to also say this, though, I think it's a fair thing to say. Our sheriff has a 287G program in the jail.

[01:27:53] I wish that was not, but he has a 287G program in the jail. If you just give me 10 more seconds, my colleagues. I think it's also fair to say, though, that our sheriff has said very clearly that he He is not involved in any ICE activities outside of the 287G program in the jail and in fact has said that he never wants to see a Loudoun County Sheriff's car near an ICE vehicle.

[01:28:18] So the sheriff's department is not involved in going into restaurants and things like that beyond the 287G program. They are not involved. And for the good of Loudoun County citizens who may be afraid whenever they see just a sheriff's car that they're going to be picked up i i want to say that to you as well because i think it's the right thing to say to you as well i'm sorry i went over my time ms briggsman would you like a closing i would thank you madam chair and and thank you for those statistics i i was going

[01:28:54] to share some similar statistics that came out of the department of homeland security and that is fewer than one in seven of those arrested in the last 12 months have charges or convictions for violent criminal offenses. So I'm really disappointed that a couple of our colleagues are buying into the fear-mongering that really has overtaken this country and allowed this to happen. I would also argue that ICE and DHS, in some areas, really have been doing this for a while. And I had the opportunity to meet with Rashida Tlaib last week through the NACO conference,

[01:29:29] who said they've been doing this in her area for quite some time. It's just gotten a lot worse. statistics bear out that 70 percent of those swept up have no convictions and even christy noem herself said some of them just have charges so you know they they get to be detained and deported just because they have charges and they get to they get to be deported out of our country without their due process and to to my colleague who thinks that this might not be a local issue

[01:29:59] Our sheriff has a 287-G agreement with this agency, this agency that is arresting people violently, ramming cars, murdering people like Renee Nicole Good and Alex Preddy in Minneapolis.

[01:30:17] And that is the same agency. And so if you have a 287-G agreement, you are cooperating and you are helping with this. And so I appreciate my colleagues supporting this, and I'm hopeful that it passes down in the General Assembly and is signed by the governor that no local agency be allowed to use local resources, local tax dollars to conduct or help with the DHS and ICE mass deportation projects of President Trump and Stephen Miller.

[01:30:49] Thank you, Madam Chair. Point of clarification, Mr. Rogers, can the governor sign that about local agencies? Can the governor sign something about local agencies? Or can she only sign about state

agencies? I would assume if there's a bill, she can sign it.

[01:31:10] Yeah, there could be executive orders that would apply to us in state agencies. I just don't know if that's what happens right now. Okay. All right. A motion is made by Supervisor Brickman, seconded by Supervisor Glass. All the people who say aye. Aye.

[01:31:28] Opposed? No. That motion would pass 5-4 with Supervisor Umstead, wait a minute, no, I'm sorry, 6-3. No, 5-4 with Supervisor Umstead, Supervisor Kirshner, Supervisor Letourneau, is that it? That's 6-3, I'm sorry, it was 6-3, it passed at 6-3.

[01:31:48] Supervisor Saines, you couldn't hear him. She voted yes, but thank you for your help. Mr. Kirshner, this is the rule, if you're going to help me, you have to be helpful, that's the rule. You've got to be helpful, that's the rule. very helpful. That's the rule. All right. Thank you. We're going to go to the next. Actually, we're at 530. So we have resolutions because it's 530. We have two resolutions. A resolution to recognize March 2026 is American Red Cross Month in Loudoun County and a resolution to

[01:32:28] recognize National Groundwater Awareness Week. And I think everything has actually, what's wrong. They're right here. They're right here. They are right here. Are they both yours? One's Ms. Glasses, right? One is Ms. Glasses. Oh, one's mine. Okay, so let's do Mr. Cranny, let's do yours first. And Mr. Cranny, why don't you join me. And Mr. Turner, you're

[01:32:50] going to join me down front for the next resolution. Everyone here for the groundwater

[01:33:16] resolution, please join us down front. Come on down front. Look at all the people. Look at other people. Oh, Jim Bingo brings a poster board that we can all learn from. Look at these poster boards. These poster boards are like a whole master's class in groundwater. That's

[01:33:56] what these posters boards are. Both sides. Yes, both sides. Seriously, it's like telling a story. Actually, I got to tell you, I just read. You heard my comments. Mr. Crony, I'm going to hand you the mic. You ready? I'm ready. I got my paper. These are the best posters I've ever seen.

[01:34:15] You guys have me always do my homework. They are. These are the best posters I've ever seen. All right. All right. Thank you. This is great. So I am very pleased to do a proclamation for National Groundwater Week.

[01:34:32] And here it is. On the week of March 8th through 14th, 2026, the National Groundwater Association is conducting its annual observance to highlight the responsible development, management, and use of groundwater. whereas the Groundwater Foundation recognizes that we all rely on groundwater in Loudoun County alone approximately 75,000 residents in Western Loudoun depend on groundwater as their water supply and whereas the Loudoun County 2019 comprehensive plan includes policies to preserve and

[01:35:07] protect groundwater quality and quantity as a natural resource and whereas Loudoun soil and water conservation district promotes education and technical programs to address soil and conservation needs and cost share programs which include groundwater wells cisterns and water resource management grants and whereas virginia extension office provides drinking water clinics for residents to test the water quality in their wells now therefore be it resolved that that the Loudoun County Board of Supervisors

[01:35:44] does hereby proclaim the week of March 8th through the 14th, 2026 as National Groundwater Awareness Week. Yay! I was very pleased to carry this resolution because as we all know, and I wanna say, groundwater is no longer a sustainable water supply in Loudoun County.

[01:36:12] I really like that you guys had that in your assessment report from the Loudoun County Preservation and Conservation Coalition. They did a great report on our groundwater supplies, so I wanna thank you for that. I have two villages in my district that are having water supply and quality issues, the Village of St. Louis in unison, and then we also know we've got droughts throughout Loudoun County, so it is a severe issue, and it's a resource that we all need.

[01:36:43] Water is essential to all of us. In fact, I wanna give a shout out to our delegate, McAuliffe, who put forward a bill to do a study on our groundwater in Loudoun and Fauquier counties. So even the state knows, even the state, yeah, wants to look into our groundwater and to do a study on that.

[01:37:08] So thank you so much for being here, and I wanna go around the room because you guys came with posters. So you're gonna educate us. Educational posters. You're gonna educate Chair Randall and me. - There you go, yes. - So this poster shows what happens when wells are pumped and there's drawdown.

[01:37:31] In other words, the level of the water is pulled down as a result of the pumping. It does come back up. However, when there are a lot of wells the same area they can affect each other well I'm not much of an expert but I have learned a few things about groundwater lately and an important point that this is making is that we have this very unique geology here in

[01:38:07] Loudoun County and our water is not in a big pool under the ground it's in these fractures in the rocks and that's one of the problems that we have that we have to deal with is that's where the groundwater is and in Western Loudoun so here are the fractures so this one shows the water supply throughout Loudoun County showing the groundwater in the light blue which is the rural the

[01:38:44] groundwater which is the town and community systems which are the darker blue and the surface water which is eastern Loudoun which is drawn off the Potomac and the districts are just the voting districts on that one this one is showing some wells for the county that are online versus offline as well as the gauge sites for USGS at some of the streams and

[01:39:16] we have a visual here of the water elevation slight decline this one is our favorite diagram here. This looks like a case of the measles, but what it shows is all these red blotches are showing areas that have exhibited significant groundwater decline over the past 25 years or so. And so the message on this particular diagram is that there's a lot of red blotches and that means there's a lot of groundwater decline all over the western part of the county.

[01:39:53] I want to thank my colleagues. I handed these slides out in random order, totally unprepared, and they've done a great job.

[01:40:10] The testament to the fact that the word is getting out. My last slide here is simply one of wells and the fractures and the fact that we have all too often some dry holes or dry wells. And that's a function of this paper-thin fracture in the granite that we have in Western Loudoun.

[01:40:31] And thank you. I have a favor to ask you. First of all, I want to say that I heard someone say, and this is one of the scariest things I ever heard, that in some years from now, currency's going to be water.

[01:40:47] And I just thought, that is petrifying. But that's what I said, currency's going to be water. When I came to the board, the first person to talk to me about water ever was a lady named Avers Renshaw. And she just walked up to me really fast and started talking, and I thought, what is going on? But she has made me so aware of the water issue.

[01:41:06] And then when I went out to California, And I learned about the water issue from how much water is not available anymore in the Colorado River that runs through so many states and gives water. So I would say Avis Renshaw has made me pick up things and study about water and groundwater, and it is a little petrifying.

[01:41:28] It's also why I have fought so hard, why we have fought so hard, some of these bills in the General Assembly that says that you can build homes anywhere, because I've said we don't have water. And it feels like I'm screaming in the dark because it's not really being heard.

[01:41:46] But my favorite, Dave, is can we keep these in the county building for a week if we put them up? I'm serious. I'm completely not joking. If we put them on easels out in the lobby, can we keep these? I promise you we will get them back to you in good condition.

[01:42:02] But this is such easy education and important education if we can keep them. A lot of people walk through the building. Do you mind if we kept these for about a week? Okay, so wonderful. That would be really, really wonderful.

[01:42:18] Thank you, and thank all of you all for coming. Thank you very much. Marwan, say something, and then we'll take a picture. Yes, we'd like to also thank you for the awareness this week. And you're absolutely right, Chair Randall, that next after awareness comes the education. And we've been doing a lot of education programs with a wide variety of organizations, Heritage Commission last night.

[01:42:39] And it's very important to have the awareness and the education before you go for the advocacy so you know what to ask for. So we do thank you for this.

[01:44:15] Oh, gosh. No, I did not. Would everyone here, if anyone's here for American Red Cross Month, please come down. Hi, how are you?

[01:44:31] You know, for the first time, I went to the American Red Cross campus in D.C. Like all three buildings. They are beautiful.

[01:44:48] They are beautiful and so cool. I learned so much. Oh my God, I'm so happy you learned that. What was the occasion? So I'm in Leadership Greater Washington, and we had our cohort there. Do you know our CEO then, Dale Koontz? I think he participated in that program.

[01:45:03] Yeah, he did. Not in our class, but I met that person. Oh, okay, that's wonderful. And Rosie, I forgot Rosie's last name. She's also up there. Does she live in Arlington? Yes, she does. Yeah, I know her in the armor. All right, so now that we've done our little hi, how's it going?

[01:45:19] It used to be the National Senior Disaster Fund. What are you saying to me? Ms. Glass? Then Ms. Glass should join me down front then. Oh, my God, I'm loving all these connections. Actually, Ms. Glass can come down front and read it. Ms. Glass can come on down and read it.

[01:45:38] I do more partnerships than that. I was in DSHR. I was a shelter manager. Oh, that's amazing. Oh, my God, thank you. We're going to bring Ms. Glass down. She's going to read it. You're going to get in the front.

[01:45:53] We're going to take the most fabulous. Whereas we celebrate American Red Cross Month by honoring our neighbors who make it humanitarian mission possible in Loudoun County.

[01:46:26] Every day, their acts of kindness change lives, bringing relief, comfort, and hope when help cannot wait. This compassionate spirit runs deep in our community, just as it has for 145 years through the American Red Cross.

[01:46:43] And whereas today, those who serve with the American Red Cross of Northern Virginia light the way during emergencies, whether it is delivering shelter, food, and comfort after disasters, providing a safe blood supply for patients facing conditions like cancer treatments, childbirth complications, and traumatic injuries, assisting military members, veterans, and their families with 24-7 global support, and empowering individuals with skills like first aid and CPR that save lives.

[01:47:16] And whereas these collective efforts are a powerful reminder that the strength of our community lies in our shared commitment to one another, as you mark American Red Cross Month, let us celebrate our local heroes and solve to continue lifting each other up so no one faces an emergency alone.

[01:47:36] Now, therefore, let it be resolved that the Loudoun County Board of Supervisors does hereby proclaim March 26, March 2026 as American Red Cross Month in Loudoun County and encourages citizens to reach out and support its humanitarian mission.

[01:47:55] I just want to thank you all for what you do it's it's it's you all save lives you know from the blood drives all the things that we've said when people in their darkest time you all are there and we just thank you for that my first job after I got out of the Air Force was as the senior director disaster fundraising at American Red Cross headquarters in downtown my job was

[01:48:33] raise money after every national disaster. A lot of people don't realize there's 25,000 disasters in the United States that the Red Cross responds to every year. That includes house fires and local disasters. Until you've gone on a disaster job, you really don't have full appreciation of the impact this has on people's lives and the impact the Red Cross has on their response to these kinds of disasters. It was a wonderful three years, and I congratulate you on red cross month yes well one i mean i think this just made my job so much easier because

[01:49:14] i didn't have to prepare so many points you all already have your red cross stories and i think that's the fabulous thing about the america red cross almost everywhere you go there's someone that has a red cross story whether it was their first cpr first aid aid training babysitter training donating blood for the first time or whether it is you know receiving help because of a home fire or a natural disaster that happened and i appreciate the america red cross for that and i thank you all for also recognizing that in this month and also in your support that you give us always

[01:49:49] i did want to come with one specific message if that's okay it's um every two seconds someone in the united states needs blood and the america red cross provides 40 of the nation's blood supply and our winter storms impacted our blood drives and that we had to cancel a lot of them which then in turn impacts the blood that we give to hospitals so if you have a moment to donate blood or to organize a blood drive at your church at your school anywhere in between reach out to us we'd be happy to help and we appreciate the support to continue providing that

[01:50:26] life-saving service how long can blood stay on a shelf and stay viable only a couple days only a couple days yeah so it's a quick turnaround I don't know exactly but it's only a couple days that we can

move it and then have it you know delivered to the hospital yes yes and remember there's no artificial blood it has to there's only human blood right so there's no AI blood so that's why it

[01:50:56] is important that we get folks to donate so we are about ten minutes before we

[01:52:23] two minutes early for for public comment and so we're going to try to get some other board business taken care of and off the plate so then we can we can get ready to the last thing we'll do was our closed session so let's do this if you have any um if you have any um confirmations put your light on please so you can make confirmations yes um stop uh thank you madam chair i would like to nominate elizabeth welch to the heritage

[01:52:55] commission and that's it anybody else anybody else all right so we're going to go on then we We probably have time to get through most of our board comments, and let's try to get through those right now since we have about 10 minutes left.

[01:53:13] Mr. Crony, would you like board comments? Mr. Crony. Thank you, Chair Randall. So disclosures. On February 23rd, a member of my staff attended the pre-meeting for Shemrika Batari, USA.

[01:53:30] On February 26th, a member of my staff spoke to Mike Romeo about the Fleetwood Road Child Care Center application. Okay, my comments. So I just want to make a statement about the purchase of George Washington University's 120-acre Loudoun County campus by Amazon.

[01:53:49] Loudoun is already widely recognized as the data center capital of the world, and the continued concentration of this single industry does not serve the long-term interests of our community. Lab does not need more data centers. We need a balance and a diversified economy. Things like life sciences, health care, biotech firms, medical research facilities, conference centers, performing arts venues, and family-friendly attractions that bring visitors and support local businesses, including attainable housing options that strengthen our quality of life

[01:54:28] and economic future. We need to encourage small business development and the creation of vibrant mixed-use hubs rather than single-use industrial areas. The presence of an institution like George Washington University offers far more than just physical space. It provides pathways for education, workforce development, innovation, losing such a valuable community asset to another data center is, in my opinion, the wrong direction, and we should be prioritizing thoughtful, diversified

[01:55:02] growth. My office hours I will be holding this month at Birchwood, and it is for mainly Birchwood residents from 2 to 5. It'll be at the Birchwood Community Center, so please stop by. I would love to meet you and help you if you need assistance I do want to do a shout out to give choose which is coming up on Tuesday March 24th early giving begins March 10th which is next week and it's hosted by the community foundation for Loudon and northern Falkier counties give choose is a great

[01:55:39] opportunity to support hundreds of local non-profits serving our community you can go to [www.givechoose.org](http://www.givechoose.org). I actually enjoy donating and learning more about the hundreds of non-profits that we have that serve our residents. We are really lucky in Loudoun County to have so many great non-profits. Thank you. Thank you. Thank you very much. Ms. Umstop. Thank you, Madam Chair.

[01:56:11] I have no disclosures, but along with Supervisor Briskman, I attended the Sheriff's Town Hall on school resource officers in the elementary schools.

[01:56:30] And I would say the most striking information to come out of that presentation was that elementary schools across the county in the last year had to make a call for service from the sheriff's office 1,649 times.

[01:56:53] That's over about 181 days of school. So there is clearly a need for a law enforcement response in our elementary schools. It's happening right now, and the sheriff's office is responding.

[01:57:13] But I will be strongly supporting keeping in the budget funding for SROs in our elementary schools. the number of shootings in elementary schools over the last seven years has increased by over 1,000% and these are our most vulnerable kids they're too little many of them to know how to hide and stay quiet and so if you have a

[01:57:51] unrolling tragedy in an elementary school to me it makes a lot of sense to have a trained sheriff's deputy in that school who can respond immediately as opposed to having to call 9-1-1 for a response some of our schools are more remotely located than others and it can take depending on traffic 20 20 minutes 30 minutes to

[01:58:23] get to some of our more remote schools to respond to a tragedy that is unfolding by that time it is way too late so when this comes before the board i i believe there will be a motion by another board member to eliminate that item from the budget I will be strongly opposed to eliminating

[01:58:51] that item thank you miss glass thank you madam chair I don't have any I don't have any disclosures today I also participated in the NACO annual legislative conference this past week

[01:59:19] I'm with the Education and Human Services Committee, and we had a lot of discussions regarding issues that a lot of counties are having concerns with specifically.

[01:59:39] I think the biggest topic that we had was regarding Medicaid and the SNAP provisions, and what we did was to have discussions with our congresspeople about the administrative costs that counties would have to have in order for, you know,

[02:00:13] folks to receive SNAP and to receive the benefits that are needed. Thank you, Madam Chair. That's it. Thank you, Ms. Glass. Thank you very much. Mr. Kirshner. Thank you, Madam Chair. I don't have any disclosures. I will, first of all, I want to thank, I'm grateful that we did the resolution on the groundwater today. I think it's an important thing for us at County to continue to look at. That's why we have been working on this at the County. We have the ability to do it. Unfortunately, doesn't look like the state's going to get the study done but chair randall myself and the leadership of mr hemstreet and his staff have been working on this we within the last few weeks met

[02:00:52] with the town mayors uh not the mayors there was a few mayors there but basically the town managers to discuss um issues that may be arising in the western loudon in the groundwater situation we are committed and have met with them about and are kind of uh putting together details to We'll do a detailed and qualified study throughout all of Western Loudoun.

[02:01:16] The good news, Loudoun Water was a participant in this. They did report to us. They have been monitoring for a number of years a number of the wells that they're responsible for throughout the West, and they are charging very well. So that was really good news to hear, but obviously it's not comprehensive.

[02:01:32] It's not throughout the whole western part of the county. So I think it's really important for us to get a real good data set, and that will take a few years to ultimately do that. But we are, as a county, our county staff are working on that.

[02:01:48] I'm grateful to the county administrator, Mr. Hemstreet, for helping us coordinate that and get that together. On another note, on a personal note, that's kind of the news from Catoctin, but on a personal note, some people have been asking me a lot of questions.

[02:02:05] I had a little incident this past week on Thursday where my family had gone down to their lake house, and it caught on fire. And my boys, they basically burned completely, but to make a long story short, my boys were in the house.

[02:02:24] They kind of followed the buddy system. They called the fire department. They got local help by running up the street. My wife was just up the street, and so they were able to do all of that themselves. The foundation was saved, thankfully, but they were also safe, and I'm really proud of them for the action that they took.

[02:02:42] They were praised by the fire marshal all the way from my 13-year-old, my 12-year-old, my 9-year-old, my 7-year-old, and then, of course, they got the younger guys out of there. So, thankfully, God protected them. We had a great fire department. This was down in the county of Louisa, and they are all okay. I'm now in the process of dealing with insurance.

[02:02:59] But for those of you who had heard about that and have extended your prayers and consideration, I appreciate it, And I'm just grateful that everybody is okay. And that's the news from the Kirshner household. Never a dull moment, Madam Chair. Yeah, Mr. Kirshner, I think how your sons handled that and took care of the little guys is, I mean, I actually reached out to Tony Howard to ask, could they be considered for a Valor Award?

[02:03:26] I'm not kidding, I did. He told me no because it didn't happen in Loudoun, but I hope Louisa has Valor Awards because they deserve one. Well, thankfully, they take after their mother. They're smart. Well, they look like her. They're good-looking kids. They look like their mother.

[02:03:41] That's for darn sure. Mr. Letourneau. Thank you, Madam Chair. Just a disclosure, on February 26th, my staff spoke with Molly Novotny with Carada Partners about the Concord Industrial and Concord Tech applications, and that is all.

[02:04:00] Mr. Sainz. All right. Thank you, Madam Chair. And, yes, I'm glad to hear supervisor Kushner and his family are doing well, despite the incident they went through recently.

[02:04:22] No mandatory disclosures. And in regards to news in Sterling, we have the Sterling Foundation is hosting one of their annual stream cleans for the first part of this year in 2026. This will take part on March 28th, which is a Saturday, starting at 8.30 a.m. to 9.30 a.m. is sign-up.

[02:04:44] This will be a good opportunity for those who are in the Boy Scouts, Girl Scouts, Cub Scouts who need, you know, community service time or, you know, get their badge. You should come out and get a little dirty and do some stream cleaning.

[02:05:01] And believe it or not, as we are in the Commonwealth of Virginia, we have the great honor of having elections every single year. And we will have a few elections this year, starting with actually this Friday will be early voting for our first election of the season.

[02:05:19] And voting will end on April 21st, so make sure you do your research and homework. But again, early voting starts this Friday, March 6th. And I'd also like to bring attention to our housing team is partnering and doing another training for those, or I should say the housing and community development team is doing a free resource for renters and homebuyers with the NOVA Housing Opportunities for All.

[02:05:52] This will be a free resource that's starting on the Saturday, March 7th at 10 o'clock a.m. to 3 o'clock a.m. in Fairfax, Virginia, and Fairfax High School. So if you are interested in learning more about homebuyership, it'll be a good opportunity to go. And then we also have a cleaning taking place this Saturday, March 7th, from 11 o'clock a.m. to 1 o'clock p.m.

[02:06:14] at Clubmore Park at the Heritage Farm Museum. So a lot of activity going on, a lot of good opportunities to get some community service badges out there. So again, Boy Scouts, Girl Scouts, I hope you guys are paying attention. And that's all for Sterling. Thank you.

[02:06:30] Wow, that was a lot of stuff for you. Ms. Bricksman? Thank you, Madam Chair. No disclosures this evening. And thank you for mentioning the Women of NACO County to County Youth Initiative.

[02:06:47] It was our first year bringing students from all over the country, Michigan, California, Virginia, and a couple other places. I really do want to thank Prologist and Equinix, who sponsored the initiative, And I think the girls learned a lot about local government and how it intersects with federal government.

[02:07:08] And so I look forward to watching their careers as they move on. And some of them, I think, will be going into politics. I do feel as if I need to speak to the news about the sale of the GW University Science and Technology campus to AWS.

[02:07:27] The sale of the property without communication or collaboration with my office, Loudoun County staff, or the Loudoun Department of Economic Development is extremely disappointing. I have met with GW many times over the years to work as partners on the best and highest use for this land as it became apparent, aside from the great nursing school, that this area would not develop into the science and technology campus as originally envisioned.

[02:07:55] Trust and believe that I have no interest in data centers being developed on this property. And I have worked with at least one developer in my first term to have them develop a housing instead of data centers near that area.

[02:08:15] And we have been clear as a board that we envision residential mixed-use development in this area, and I, for one, plan to stick to that vision. I'll be making a more formal statement after I gather all of the facts about this secretive deal between two entities who have claimed to want to be trusted community partners.

[02:08:35] Trusted community partners don't make these sorts of decisions that could have a huge impact on the community without involving the community. And unfortunately, that is exactly what has happened. But I want to assure my constituency and Loudoun that I'm going to get all of the facts, be making a statement soon, and we'll be watching very closely as this carries forward.

[02:08:59] From the Gun Violence Archive, Madam Chair, there have been 2,054 total gun deaths and 58 mass shootings. The deaths include 28 children under the age of 12 and 136 between the ages of 12 and 17. And while we are on the topic of firearms, I am going to be holding my opinion on the sheriff's proposed

budget until we hear from the schools thank you madam chair thank you very much uh did i get everybody before i go to mr vice chair like everybody mr vice chair thank you

[02:09:34] madam chair on february 26 2026 i met with charles yet steve kuhn and chuck kuhn from jk moving to discuss the cross mill development in the valley commerce center application on february 25th and 27th 2026 my staff spoke with colleen gillis and ben wales from curata about the west belmont application this past sunday cbs sunday morning had a segment on uh mr scott uh stump who for the last 16 years has been working hard almost by himself to get a desert shield desert storm

[02:10:04] memorial on the mall in downtown dc and it was a fascinating story and i'm a desert storm veteran i was general shorescott's personal briefer for two years i briefed every day of the desert shield Desert Storm in the war room. I briefed all the senior generals and Secretary Cheney and Chairman Powell. And I called up, I got his number off the website and I called him up on Sunday morning and I said, listen, I'd like to support this effort any way that you need me to support it. Here's my background. And today he called me back and he was really excited and he said,

[02:10:39] I'd love to have you on the team. And so we're going to do that. The placement of this memorial will be to the left of the Lincoln Memorial before you see the Vietnam Memorial. So it is on prime real estate on the mall. And he struggled for 16 years to get approval for this because this was not a controversial war.

[02:11:00] It was an absolutely perfectly executed military operation that 500,000 U.S. troops deployed, did the job, and came home. We had, sadly, 148 deaths, casualties, military casualties in that operation. But it is long overdue to have a Desert Shield, Desert Storm Memorial on the Mall.

[02:11:18] I'm very excited to be part of that project, and so you will probably be hearing me talk about that in the days and months ahead. Thank you. Thank you. I have nothing to disclose. I do want to associate myself with the comments about George Washington, the sale of George Washington, with both the supervisor from that district, Ms. Brixman, and supervisor Tercroni.

[02:11:39] It would be a horrible place for a data center, and I am really sad that this was done without, not only without consultation with the district supervisor, but in fact, it was the opposite of what she believed was going to happen, and so it is very, very unfortunate. I do want to talk really quickly.

[02:11:56] If you've ever heard me talk about substances, what you hear me talk about all the time is that in this country, we make the mistake of focusing on a substance versus the disease of substance dependence. And 20, 25 years ago it was free-based cocaine, also called crack cocaine, that everyone focused on and depending on who's dying is how we respond to the drug. So when it was free-based cocaine, they upped the penalty and put more people in jail. And then sometime later it was methamphetamine and truthfully a lot of poor white people were dying and what they did was move some certain substances behind the counter and

[02:12:35] and they kept it moving and they never dealt with the substance, the disease of substance use. Now it is, we also had PCP in called water form or dipper form that is mostly found on the east coast, go-go's and raves and things like that. And of course when opioids came along because of who was dying, they handled the opioid addiction very differently and that's good. We want to treat the addiction. They should have done that all along. But But I speak on this because there is another substance, and there will always be another substance, and it's called kratom.

[02:13:11] And kratom is a substance right now that people, you will hear about more. It is from a tree in Asia, specifically Thailand, and it is the leaves of the tree when the leaves of the tree are dried and smoked. In low doses, it acts like a stimulant.

[02:13:27] In high doses, it acts more like an opioid. The effects are more like an opioid. side effects or dizziness, constipation, drowsiness, but can also have more severe side effects like seizure, tachycardia, high blood pressure, kidney issues, liver issues. It is not at this point a substance that has been given a number yet, but it is deemed a substance of concern by the FDA. And so let me say once again, there will always be another substance.

[02:14:01] At some point, we have got to stop talking about separate substances and talk about the disease of substance dependence. It is not a character flaw. It does not mean you're a bad person. It is a disease. And until we face the fact that addiction is a real problem in this country and deal with the disease of addiction, we're going to do two things.

[02:14:22] One, keep finding new drugs. And two, keep losing precious people in our communities. So please be aware of this new substance that is now on the horizon and it is available over the counter. Okay, we're going to go on and have our public comments now.

[02:14:39] We have quite a few. If we have more, would you please bring them up to me if you don't mind? I'm going to call your name. When I call your name, please come to the podium closest to you. State your name. And if you'd like to state where you live, you may. You will have two minutes. Please address your comments to the board, which means you face the board when you're making your comments, I will try to call your name, two or three names in advance, so that you know that you are coming up next.

[02:15:07] Our first person is Avis Renshaw, followed by Madeline Skinner, followed by Mara Wash Copeland. Good evening, Ms. Renshaw. Good evening, Madam Chair, ladies and gentlemen of the board. I'm Avis Renshaw of Lost Corner Farm and the current president of Loudoun County Farm Bureau.

[02:15:26] I think National Groundwater Awareness Week is a wonderful item for awareness, especially for people not on well water. Those of us on well water are already very aware of our groundwater amenity. And now, thanks to the 76-page study on Loudoun's groundwater data, anyone can be more aware of our very valuable groundwater resource.

[02:15:46] I'd encourage each of you to read the study that's available on the Loudoun County Preservation and Conservation Coalition website. I can tell you that the farmers who heard the presentation at our annual Farm Bureau meeting were absolutely wrapped in attention, and I'm sure that you will be too. Our water resources may be more finite than we want to admit. The new data center project across the Potomac from Lucketts has requested a 2 million gallon per day draw from the Potomac, up to 80% of which can evaporate. And that intake is upriver from the Loudoun water

[02:16:22] intake and that leaves me wondering how much more this river has to give. Our property had a well go dry last year for the first time since we moved there in 97 and it's not from overuse by us. We have newer subdivisions close by who were watering their lawns all summer even when it was raining and we have another about 100 homes to be built even closer. That's not looking good for us and maybe not for them. The pot is only so full it can only recharge so fast and I know that balance is now out of whack at my farm. Please do more than just read this groundwater awareness

[02:16:58] proclamation. Take it very seriously and act aggressively on remedial opportunities because otherwise you could be leaving a Loudon to the next generation bereft of this life-sustaining natural resource. Please find this study and use it. Taxpayers have paid for the data. Don't reproduce stuff that's already there. Ask the authors for their help. Please. Thank you. Thank Thank you. Ms. Rinshaw, when you talked about remedial opportunities, is that some of that remedial opportunities available in the study? I think the study is just assessment right now.

[02:17:32] Okay. All right. All right. Yeah. All right. Thank you. Madeline Skinner, followed by Mara Wash Copeland, followed by Andrew Stoddard. Good evening. Good evening, Chair Randall and supervisors. I am Madeline Skinner, and I'm here tonight as a resident of Philomont. The 2019 comprehensive plan includes policies to preserve and protect groundwater quality and quantity as a natural resource the comprehensive plan contains a lot of good policies to preserve and protect while there are currently other plan products that may be mentioned by tonight's speakers I will speak to one near and dear to my heart and home a prime example of what not to do for

[02:18:08] groundwater awareness week last week bulldozers chainsaws and chain-leak fences appeared on our historic horse show grounds in Philomont most know this as a complete travesty from beginning to end. The end game will produce over four acres of asphalt and a building which is just shy of half an acre. All this on seven acres of our village's only community green space purchased over 60 years ago with community donations now gone forever and nowhere for the community to assemble. There will be very little rainwater being absorbed on these seven acres, although now will only be like two and a half acres, only runoff into streams instead

[02:18:44] of much needed water being allowed to recharge our already low levels of groundwater but wait the same week a few letters came to those adjacent to this parcel to announce future blasting close your eyes imagine looking out your window every day for more than a year and having your quiet evenings and weekends destroyed by construction noise and traffic worst of all you go to wash your dishes or clothes and mud comes out of your pipes there was never a well water dried down test on this horse show grounds well not knowing what a 99.9 percent increase in water use by a 20,000 square foot building will do to Amanda's well, 100 feet away, or the Baker Spring, which is their only source of water, less than 50 feet away.

[02:19:20] Why wasn't this tested prior to the project's approval? We did get, DTCI did say that the blasting letter came from the contractor, however blasting has not been taken off the table. We're worried about our historic homes and the potential impact to the residents' wells.

[02:19:36] In 2011, one of Loudoun County's monitoring wells jumped 15 feet in response to the earthquake 80 miles away. So just think about the impact. Thank you. Thank you. Thank you so much. Mara Wash Copeland, followed by Andrew Stoddard, followed by David Ward.

[02:19:56] Aren't you all the groundwater folks? Okay, that's fine. That's fine. That's fine. Andrew Stoddard, followed by David Ward, followed by Roger Smith. Good evening, sir.

[02:20:12] good evening thank you my name is andrew stoddard and i have been a resident of hamilton and western loudon county since 1983. i'm also a water resources engineer with 50 years of experience so i know that there's a finite limit for withdrawals of water to meet all demands from all sources including groundwater the potomac river reservoirs and the streams of loudon county such as goose creek and

catoctin creek over the past four decades the number of wells has increased from about 6,000 in 1980 to 19,000 active wells in 2025. I understood early on when I moved here

[02:20:50] that new wells were approved by the county most likely without understanding the limits imposed by both the geology of the county and the concept of maximum sustainable yield for groundwater resources of the western part of the county. It's critical that all requests for new Loudoun County permits for groundwater withdrawals be evaluated in the context of existing and proposed permitted uses, not only at the small scale of specific property and its adjacent properties, but also at the much larger comprehensive scale of the entire western part of the county.

[02:21:24] This approach is essential to ensure the sustainability of both groundwater and surface water resources within the entire jurisdictional area of the county. So I ask you, the Board of Supervisors, what is the finite limit for combined withdrawals of water from both groundwater and surface water resources that will satisfy existing and projected demands over the next several decades for all water uses in Loudoun County?

[02:21:52] How many more wells can continue to be allowed to withdraw water from the unknown volume of groundwater resources that are in western Loudoun County? Answers to these questions are important, and they're needed to ensure the future availability of water resources in Loudoun County.

[02:22:11] Thank you very much. David Ward, followed by Roger Smith, followed by Kyle Hartman. Good evening, sir. Good evening. Thank you. My name is David Ward.

[02:22:27] I've lived in the Catoctin District for 42 years. I'm here tonight to offer my sincere thanks to the board for proclaiming Groundwater Awareness Week. For me, groundwater is more than a resource. It's been the top line of my life for over 50 years now, from constructing my first numerical model as a student to working decades as a professional hydrogeologist.

[02:22:47] I've seen firsthand how vital this hidden resource is. Before retiring two years ago, I had the privilege of serving as a water resources specialist, As county staff of the government for over 20 years where I was collecting water level data from county monitoring wells Writing in reports on water resources monitoring data our history of groundwater has often been dictated by crisis awareness spiked during the droughts as far back as 1930 it was drought that led to the formation of the ad hoc groundwater committee in

[02:23:23] 1999 where I participated and the Water Resources Technical Advisory Committee where I was honored to support for over 20 years We saw the golden era of water resources data bolstered by a million-dollar grant and hundreds of hydro studies However after the 2008 economic shift that awareness began to wither Committees ended county staff diminished and for more than a decade We entered into what I refer to as the dark ages of groundwater awareness But tonight marks the turning point.

[02:23:56] Through recent news coverage and social media and now this proclamation we're witnessing a reawakening. This isn't just about policy, it's about the 75,000 Loudon residents who rely upon groundwater every day. It's an understanding that the impacts of groundwater at Valley Commerce on town wells and the potential stream depletion of Catoctin Creek from the proposed interconnect project.

[02:24:19] I thank you for your appreciation of our natural resources and recognize the future Loudoun starts deep beneath our feet. Thank you. Thank you, sir. Thank you. Roger Smith, followed by Kyle Hartman. I'm going to go back to Ms. Copeland before I go to the people that just signed up.

[02:24:40] Good evening, Mr. Smith. Good evening. My name is Roger Smith. I live just outside Waterford. I'm here to thank Supervisor Tacroni for bringing forward the Groundwater Proclamation and thank all of you on the board for approving it. The true value of a resolution like this will be measured by how it informs future decisions.

[02:25:00] Projects that ignore their impact on groundwater can have serious consequences. Across the U.S. and around the world, aquifer depletion has forced people to abandon homes and farms. A recent report, which you're hearing a lot about, concludes that the Western Loudoun water table has fallen by 10 to 40 feet since 2000.

[02:25:24] It warns that groundwater is no longer a sustainable long-term water supply. We really must rethink how our groundwater is managed. For example, consider a project that the board approved unanimously in November 2024.

[02:25:40] It proposed that water extracted from the aquifer beneath Peonian Springs would end up in the Potomac River, rather than back in the ground where it originated. This approach is unsustainable and directly conflicts with the principles recognized in the Groundwater Proclamation.

[02:26:01] Fortunately, it's not too late to reconsider this particular project. But in future, as proposals come before you, I urge you to uphold the words and the spirit of the Groundwater Proclamation that you approved today. Thank you.

[02:26:17] Thank you, Mr. Smith. Kyle Hartman, and then back to Mara Wash Copeland, and then to Nicole, I think it's Ratcliffe. Yes, Mr. Hartman. Oh, he's remote. Yes.

[02:26:33] Thank you. I decided to go with some hopefully more environmentally friendly option in calling in. I've been a lifelong resident of Sterling, and we obviously have city water here instead of groundwater, but I spent two years working at the Arboretum, State Arboretum of Virginia and Clark County, and they're all on wells and groundwater, and that was really enlightening.

[02:26:56] And one of the issues here, first, thanks for making the proclamation on groundwater awareness. I know I'm certainly more aware now, and I enjoyed reading the study, but I think as county we should be mindful that we have two options here the short-term solutions and long term i know short term could be like uh focusing on what we can do in the next maybe 10 years of increasing the recharge rates reducing hardscape things um that that we can do within our lifetime other things like long term such as climatic conditions that are changing things are

[02:27:33] becoming much much drier. I used to water trees and I know how dry it is and some of these summers lately have been brutal and one of the biggest issues is we're not getting the snowfall that we used to. That slow melting snow like we've seen over this past month used to be far more common so now we're getting these torrential rainstorms and it's not recharging the groundwater at the rates that we need but in the meantime I think just keep being aware and showing others that we can find the solution to this and that we're we're all leaving loud in a better place than we found it thank you all for your service thank you sir thank you marwash copeland followed by

[02:28:12] nicole ratcliffe i think it is and trinity mills good evening miss copeland this is the 2,487 page

[02:28:54] TILUK staff packet from January 29th. It includes over 5,000 ZOR public comments over six years. Your staff worked tirelessly to use these comments to draft the walrus direction motions you'll hear

in May. Last month, seven of the staff's motions were substantially changed by one submitted by industry without notice to stakeholders. The changes were not a compromise.

[02:29:24] They disregarded and overturned your staff's work to balance the XOR and Walrus input for unresolved RPA issues. The changes directed looser standards before enforcement and remediation for existing uses to get in compliance with permits and inspections.

[02:29:46] Ask your staff. During XOR, Public Affairs sent over 65 notices for how to provide comments resulting, per Kimley Horn, of about one-third each from industry ag conservation and hundreds of your citizens but the walrus process input with only 15 notices and 46 voices was very unbalanced 54 industry 32 ag conservation and only 14 citizens don't ignore the xor public input so here's a

[02:30:24] challenge. The packet weighs 32 pounds. After your budget heavy lifting, review this packet and I will work to lift it by myself by May. If you can't manage the 2,487 pages, then at least review the Kimley Horn Cliff Notes version of 34 pages in summary. And I'll be back with more information for me thank you miss wash copeland nicholas ratcliffe you'll be followed by

[02:31:01] trinity mills followed by um it says dick and diana virgo but you guys can go separately you don't have to go at the same time you can you can speak separately if you'd like good good evening sir madam chair and board of supervisors thank you for hearing me talk uh i'm a resident of Loudoun County for about 48 years. I live in Waterford. Since the first time I arrived in Waterford, I was very, very involved with urging most of the items that are in the proclamation

[02:31:37] that you approve today for the benefit of our citizens that lived in the village. I am a research geologist from the U.S. Geological Survey. I'm not a hydrologist, but I'm a geologist, a research geologist who knows a lot about groundwater and the rocks that hold that water.

[02:32:00] I'm a little dismayed to learn that you as a board and the county as a whole appears not to have adequate staff to evaluate the contracts that you let to search for water. And by force, you are obliged to listen to the recommendations of the people that you hire. Many counties operate differently. I can speak from experience from Rockland County, New York, where I lived for 14

[02:32:39] years, where there was a severe water problem in a county that has all of the elements of geology and hydrology exactly that we have here, from here to the Potomac River. It's the same setting.

[02:32:57] They had a research project from the U.S. Geological Survey, and I'm retired. I'm not speaking for the Geological Survey. But I would urge you to look into getting qualified scientists familiar with hydrology to be on any of your boards so that you can adequately understand and appreciate what your contractors are telling you for the money that you give them.

[02:33:30] Thank you, sir. Thank you very much. Thank you. Thank you, sir. And I have your number here. I might be giving you a ring. Trinity Mills. Ms. Mills, you will be followed by Dick and or Diana Virgo. Good evening.

[02:33:46] Good evening. I'm Trinity Mills speaking on behalf of Loudoun Wildlife Conservancy. I'd like to thank Supervisor Tacroni and the board for taking the time to make this resolution and bring attention to a critical issue for Western Loudoun. Despite our tendency to take it for granted, we all know how crucial of a resource clean water is for both our human society and our ecosystems. As studies, community science efforts, and resident experiences have shown, our groundwater supplies are in danger. Drought

persists, wells are depleting, streams have stopped flowing, and concern is growing. The initiative to undertake a study of

[02:34:21] our groundwater resources that will serve to provide guidance on its protection is necessary and commendable. We as a community are relying on a robust, transparent, and rigorously reviewed study, not just one that finds the path of least resistance, as water likes to do. It is essential that the study include oversight from an array of subject matter experts, providing scientific and technological expertise from a variety of levels. This includes the U.S. Geological Survey, as well as DEQ at the state level, especially imperative to consider related to the budget item funding a study on Loudon groundwater, as introduced by Delegate McAuliffe in the Virginia General Assembly

[02:34:59] the session. Transparency and credibility through thoroughness and oversight must be prioritized as Loudoun County study proceeds. Loudoun's farmers, residents, and wildlife depend on it. As you hear from others tonight, I hope the gravity of the situation will sink in. I trust to a greater degree than we're seeing water sink back into the ground in Western Loudoun. Thank you. Thank you.

[02:35:23] Thank you very much, Dick and or Diana Virgo. You can both speak separately if you'd like to. can't just be you okay wonderful and you'll be followed by robert here for moral support okay you'll be followed by robert cohen madam chair members of the board and at least some of the people in the room we're addressing this to you i'm dick fergo my wife diane and i own property in the corridor alongside clarks gap road this is where many properties would be adversely affected by the proposed county project to interconnect water and wastewater systems

[02:36:03] in Peonian Springs and Waterford. And we appreciate the time you've given to this, Madam Chair, and to you, Mr. Kirshner. We want to focus today only on the project's requirement to drill four commercial wells on private properties located in the Clarks Gap corridor.

[02:36:22] The project specifically identifies our property as a candidate location for one of those wells. It's key to know that the project's goal for the wells overall is to extract a total of 414 gallons of water per minute.

[02:36:40] All of that water would be transmitted by pipes and such and mains to the two towns of villages of Peonian Springs and Waterford. To make that number meaningful to us and to any other homeowners who might be forced to have a well drilled on their property, Each of those wells would extract 4.5 million gallons per month, or nearly 54 million gallons per year.

[02:37:09] We have no idea if that's a large number or a small number, but to us it's totally overwhelming when you compare to the fact that EPA says a family of four, we're a family of two, usually uses 12,000 gallons per month, or 288,000 per year.

[02:37:27] that said in the absence of any data to the contrary fear our greatest fear is that each of the project's new commercial wells has a high probability of drying up wells of the target properties and also for those of the properties surrounding them who might share the same aquifer there are probably people in the room would challenge the word aquifer mr virgo i'm sorry your time is up if you'd like to you could leave your comments with the with the clerk the rest of comments with the clerk and or email them to us or could my wife come up and do yes you can absolutely

[02:38:03] could she can yes that that that is good support right there we appreciate your flexibility yeah absolutely that's good thinking well uh that said in the absence of any to the con any data to the contrary

our greatest fear is that each of the projects new commercial wells has a high probability of drying up wells of the target properties and of those of their neighbors who

[02:38:41] share the same aquifer as a result many property owners in the clark's gap corridor would be forced to incur that unacceptably high risk of a dry well with no possible benefit from the interconnected villages project in conclusion for this and for other compelling reasons in the waterford preservation preservation groups 20 january 26 perspective paper we concur with the wpg that the interconnected villages project should be terminated and replaced with separate plans

[02:39:15] for each village tailored to their specific needs a perspective see the wpg paper a perspective on water and wastewater issues in waterford and peonian springs thank you for this opportunity to address the board thank you ma'am good well please finish up so we can actually go on with the meeting thank you very much robert cohen followed by nan mccary mccary good evening sir

[02:39:52] good evening my name is robert cohen i'm a hydrogeologist with more than 45 years of experience working on groundwater projects including in nine countries 44 states and in Loudoun County. Between July 2025 and February 2026, I work with the AG work group, particularly with David Ward, the senior author of the report, to address misleading information in their report, particularly related to the interpretive water level decline map, the red blob map that we saw earlier. I was informed that the misleading red blob map could not and would not be removed

[02:40:29] from their report. I ask why not. I'm sorry to inform you that the red blob groundwater level decline map that was paired by the AG work group and was published by the Conservation Coalition is fallacious, unscientific, and misleading. The red blobs are purported to show large and widespread areas throughout Latin County where water table decline ranging from 10 feet to 40 feet and more or more has occurred since 1999. A detailed explanation of the errors that infest the misleading red blob map is provided in a memo that I

[02:41:05] emailed to the coalition on January 7th, 2026. I've left copies of that memo along with related background documentation that I hope you will review and consider. Furthermore, long-term groundwater monitoring level data collected by Loudoun County in the U.S. Geological Survey at 20 dedicated monitoring locations in the county. These are not the Loudoun water monitoring locations that were referenced a little bit ago where no problem was reported. This data from the USGS and Loudoun County does not support the water level decline

[02:41:41] interpretations presented by the AG workgroup. I have also identified some recommendations to gain more knowledge in my memo on the sustainability and impacts of groundwater pumping in the county. All the work that I've done related to review of the ag workbook report was done on my own time i've received no compensation from my employer or any other entity thank you thank you thank you very much and our last speaker is that do we have any more speakers that came up emma do we have we good okay our last oh we have

[02:42:15] two more speakers i'm sorry nan mccary and phil daly good evening ma'am i'm nan mccary i live in Lockett's and actually on a well and so that's a concern. I was raised on a farm that my family has been farming for almost 70 years in Lockett's and so I kind of grew up with the ethic of thinking about your water all the time. Thank you so much for this proclamation because I think the problem is I don't think the average citizen actually thinks about this nearly as much as they should. I'm the kind of person who's like delighted that it's raining right now and almost

[02:42:52] always delighted to see the rain, I just think that people are not taking that seriously. I worked for a while to help homeowners do more sustainable landscaping so we can have fewer impermeable surfaces and have our, have the water seep back into the ground.

[02:43:10] It's our most precious resource and we have seen civilizations fall and you know a lot of the time it's because of droughts and water problems and I think that that's a possibility for us so i think it has to be front and center so thank you very much for this uh proclamation thank you thank you ma'am and our last speaker is phil daly good evening sir good evening madam chairman and board i'm phil daly 18194 sands road in the village of lincoln i live in a little bit

[02:43:48] over one acre you know that acre i have a well i have an old spring house which still flows and i border, my property is bordered by a small contributory to Cricketron, which runs into the Goose Creek eventually. From a practical point of view, I've always had water in my well.

[02:44:16] Sometimes it's not as good as it should be, but always had that. The whole village of Lincoln is on well water, individual well waters. I have noted that that spring has always flowed, maybe not full thing, but the creek, which usually flows in the last two or three years, has up to where our spring feeds it pretty much dried up, comes out of Perceville, pretty much dried up.

[02:44:47] Of course, that's even less water going down into Goose Creek eventually. There's a real serious problem out there. I've been here since 1980. I've been a water monitor in Goose Creek and in the Catoctin Creek, and let me tell you, It's getting serious out here, and I'm just saying from a practical point of view, you've heard the experts talk a little bit, but it's not something.

[02:45:14] I've been here while we've done the Western Hills study, study before that, and yet those things seem to have been washed over. No one's really paying too much attention to those old studies, but it's past time.

[02:45:30] I'm glad you did the proclamation tonight, but proclamation is not going to fix it. We really have to get on this, because all those people in the western part of the county are counting on everybody in the county to appreciate the problems we're having and get with it.

[02:45:48] Okay, so thank you very much for the proclamation tonight. Thank you, sir. Thank you. And thank you, everybody, that came out to speak. I do want to find that report that Ms. Rinshaw talked about and the assessment and take a look at it.

[02:46:04] And I will be making just a couple of phone calls to people just to ask more questions. But we really, really, really appreciate all of you all coming out tonight to speak on this issue. Supervisors, we are going to go into closed session, and we will take our dinner break while in closed session.

[02:46:22] Mr. Vice Attorney, will you meet us in the closed session? I move the Board of Supervisors recess the public meeting and enter into closed session pursuant to section 2.23711 of the Code of Virginia to consider a personal matter involving the annual performance review of the county administrator and the county attorney.

[02:46:39] Second. Oh, Ms. Glass said second. Discussion on the motion? Seeing none, all of them please say aye. Aye. So Ms. Bricksman and Mr. Sange, you guys are going to join us in closed session, right? Yes, ma'am. Okay, thank you.

[02:46:55] Yes. All right, we are in closed session.

[03:17:22] We are back. Vice Chair Turner, would you please read us out of closed session. I move the closed session be adjourned, that the Board of Supervisors reconvenes this public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting.

[03:17:41] Madam Chairman, seconded by Supervisor Letourneau. Discussion on the motion. I'm sorry. Ms. Brixman and Mr. Sains, are you back? I'm back. I'm here. Okay, wonderful. All the people see, say aye. Aye. Any opposed?

[03:17:56] That motion will pass 9-0. Mr. Sainz, will you affirm? Affirm. Ms. Brixman, will you affirm? Affirm. Everybody else please affirm. Affirm.

[03:18:14] And I affirm as well. I believe that is everything. Ms. Brixman has said there will be a meeting tomorrow night, and we will continue budget on Thursday night. We are adjourned.



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